

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, March 4, 2025. Contents noted. Recommend approval of the negotiated settlement agreements in DADS No. 2022-24985 AND DADS No. 2024-31968 against PO David Damico, Tax Registry No. 957509. These cases was conferenced on February 4, 2025, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of New York City Police Department Imposed Training for DADS No. 2022-24985 AND DADS No. 2024-31968, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for disposition purposes.

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

DISAPPROVED

JUN 20 2025
Jessica Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

AMENDED FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, September 12, 2025. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement and **DISAPPROVAL** of the First Endorsement regarding Disciplinary Case No. 2022-24985 and 2024-31968 (PODS Case No. C-031964 and C-03052) against Police Officer David Damico, Tax No. 957509.

The Police Commissioner **directs** that charges and specifications in this matter be dismissed and no disciplinary action regarding Disciplinary case No. 2024-31968 (PODS Case No. C-030352).

With regard to Disciplinary Case No. 2022-24985 (PODS Case No. C-031964), the Police Commissioner **directs** that Police Officer Damico will receive Training from the Training bureau (to be initiated under a separate cover).

The Police Commissioner's Amended Fourth Endorsement **supersedes** any prior Endorsements.

Forwarded for your **NECESSARY ATTENTION**.

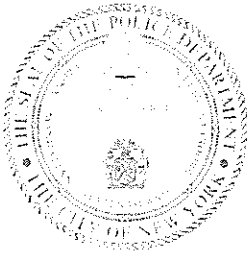

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jm

cc: Chief of Training

Commanding Officer, Professional Standards Division



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

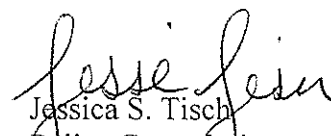
Re: Disciplinary Case No. 2022-24985 / PODS Case No. C-031964 regarding Police Officer David Damico

Date: September 10, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer David Damico wrongfully used force against an individual, threatened to use force against an individual, and was discourteous towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner